



SaaS Services Agreement

Hermia Lead Accelerator V8

AI-Powered Real Estate Lead Qualification & CRM Automation

Initial Term	Setup Fee	Monthly Fee	Jurisdiction
6 Months	\$1,700 AUD	\$440 AUD / mo	Victoria, AU

Electronic Acceptance: By ticking the acceptance checkbox in the Hermia AI onboarding form and paying the Setup Fee, the Customer agrees to be legally bound by this Agreement under the Electronic Transactions Act 1999 (Cth) and Electronic Transactions (Victoria) Act 2000. No handwritten signature is required.

A Definitions

In this Agreement, unless the context requires otherwise, the following terms have the meanings set out below:

"Agreement"	This SaaS Services Agreement, including any schedules or annexures.
"Commencement Date"	The date on which the Customer pays the Setup Fee.
"Confidential Information"	Any non-public information disclosed by one party to the other that would reasonably be understood to be confidential.
"Customer Data"	All personal information, property enquiry data, and other data processed by the Service on behalf of the Customer.
"Force Majeure Event"	Any event beyond a party's reasonable control, including acts of God, pandemic, power failure, internet outage, or failures of Third-Party Services.
"GST"	Goods and Services Tax as defined in the A New Tax System (Goods and Services Tax) Act 1999 (Cth).
"Initial Term"	The period of 6 months commencing on the

	Commencement Date.
"Intellectual Property Rights"	All current and future IP rights including copyright, trade marks, patents, designs, trade secrets, and know-how.
"Personal Information"	Has the meaning given in the Privacy Act 1988 (Cth).
"Provider"	Hermia AI, the operator of the Hermia Lead Accelerator V8 platform.
"Service"	The Hermia Lead Accelerator V8 platform described in clause B.
"Setup Fee"	\$1,700 AUD (inclusive of GST) payable on the Commencement Date.
"Subscription Fee"	\$440 AUD per month (inclusive of GST) payable in advance.
"Third-Party Services"	External platforms including ClickSend, OpenAI, HubSpot, Airtable, Gmail, and Stripe.

B Services

B.1 The Provider agrees to provide the Customer with access to the Service for the duration of this Agreement, subject to payment of applicable fees.

B.2 To deliver the Service, the Customer grants the Provider authorised access to the following Customer accounts and systems:

- Gmail — to monitor the Customer's inbox for inbound buyer property enquiries;
- SMS (on the Customer's behalf) — to send qualification messages to leads and receive their responses;
- HubSpot CRM — to create and update lead contact records, assign lead status, and send internal memo emails;
- HubSpot Meetings — to enable leads to self-book property inspections directly into the Customer's calendar;
- Airtable — to archive and store leads that do not meet the active follow-up threshold.

B.3 The Provider uses its own proprietary technology and third-party tools to deliver the Service. The specific technology stack is confidential and forms part of the Provider's Intellectual Property. The Provider is not required to disclose the tools, platforms, or methods used internally.

B.4 The Service is provided on an "as is" and "as available" basis. The Provider makes no guarantee of any specific number of leads, lead quality, conversion rates, or sales results.

B.5 The Provider may update or modify the Service from time to time and will use reasonable endeavours to notify the Customer of any material changes that adversely affect core functionality.

B.6 The Provider will use commercially reasonable endeavours to maintain Service availability of at least 98% per calendar month. This obligation does not apply to: (a) scheduled maintenance (of which the Provider will give at least 48 hours' notice where possible); (b) Force Majeure Events; or (c) failures of Third-Party Services including ClickSend, OpenAI, HubSpot, Airtable, Gmail, or Stripe.

C Fees & Payment

Fee Type	Amount (AUD incl. GST)	When Due
One-time Setup Fee	\$1,700	Immediately on signing, via Stripe
Monthly Subscription Fee	\$440 / month	In advance, 1st of each month via Stripe recurring

C.1 Access to the Service will not be granted until the Setup Fee is received in cleared funds.

C.2 If the Customer fails to pay any amount by the due date, the Provider may: (a) charge interest at 10% per annum calculated daily; (b) suspend access with 5 business days' written notice; and/or (c) terminate this Agreement under clause G.

C.3 All fees are non-refundable except as expressly provided in clause G or as required by the Australian Consumer Law (Schedule 2, Competition and Consumer Act 2010 (Cth)).

C.4 The Customer is solely responsible for all Third-Party Service costs including ClickSend SMS credits, OpenAI API fees, HubSpot, Airtable, and Stripe fees.

D Term & Renewal

D.1 This Agreement commences on the Commencement Date and continues for an Initial Term of 6 months.

D.2 After the Initial Term, this Agreement automatically renews for successive one-month periods unless either party provides at least 30 days' written notice of non-renewal prior to the end of the then-current term.

E Intellectual Property

E.1 The Provider retains all Intellectual Property Rights in the Service, including all software, algorithms, workflows, templates, and documentation. Nothing in this Agreement transfers any Intellectual Property Rights to the Customer.

E.2 The Customer grants the Provider a limited, non-exclusive licence to access and process Customer Data solely for the purpose of providing the Service during the Term.

E.3 The Customer must not copy, reverse engineer, decompile, or create derivative works from the Service or any part thereof.

F Data Privacy & Confidentiality

F.1 Privacy Act 1988 (Cth) Compliance

F.1.1 The parties acknowledge that the Service processes Personal Information of third parties (property buyers) as defined in the Privacy Act 1988 (Cth).

F.1.2 The Customer is the data controller (APP entity) of all buyer Personal Information. The Provider acts only as a data processor and processes Personal Information solely to provide the Service, in compliance with the Privacy Act 1988 (Cth) and Australian Privacy Principles.

F.1.3 The Customer warrants that it has all necessary consents under the Australian Privacy Principles to provide buyer Personal Information to the Provider.

F.1.4 The Provider will implement reasonable security measures to protect Customer Data against unauthorised access, disclosure, or loss.

F.1.5 The Provider will notify the Customer promptly upon becoming aware of a data breach triggering obligations under the Notifiable Data Breaches scheme (Part IIIC, Privacy Act 1988 (Cth)).

F.2 SMS Compliance

F.2.1 Every outbound SMS includes "Reply STOP to opt out". The Provider will honour all opt-out requests promptly in compliance with the Spam Act 2003 (Cth) and ACMA guidelines.

F.2.2 The Customer must not use the Service to send unsolicited commercial electronic messages to individuals who have not consented to receive them.

F.3 Confidentiality

F.3.1 Each party agrees to keep the other party's Confidential Information strictly confidential. This obligation survives termination for 3 years.

G Termination

G.1 Either party may terminate immediately by written notice if the other party commits a material breach and fails to remedy it within 14 days of written notice, or becomes insolvent or enters administration.

G.2 If the Customer terminates this Agreement during the Initial Term for any reason other than the Provider's material breach, the Customer must pay a termination fee equal to fifty percent (50%) of the Subscription Fees that would have been payable for the remainder of the Initial Term. The parties agree that this amount is a genuine pre-estimate of the Provider's loss (including setup costs, integration work, and lost revenue) and is not a penalty.

Note: Under Australian law, penalty clauses are void. This early exit fee is specifically drafted as a genuine pre-estimate of loss — legally valid and enforceable in Australian courts (Andrews v Australia and New Zealand Banking Group Ltd [2012] HCA 30).

G.3 Upon termination: all licences cease immediately; the Provider will supply Customer Data in a commonly used format within 30 days of written request; all accrued rights and liabilities survive termination.

H Warranties & Limitation of Liability

H.1 To the maximum extent permitted by law (including the Australian Consumer Law), the Provider's total aggregate liability under or in connection with this Agreement is limited to the total Fees paid by the Customer in the six (6) months immediately preceding the event giving rise to the claim.

H.2 In no event will the Provider be liable for: loss of profits, revenue, data, or business opportunity; indirect, consequential, or incidental loss; or any loss arising from the acts or omissions of Third-Party Services.

H.3 Nothing in this Agreement limits liability for death or personal injury caused by negligence, fraud, or any non-excludable consumer guarantees under the Australian Consumer Law.

I General Provisions

I.1 Force Majeure. Neither party is liable for delay or failure caused by a Force Majeure Event, provided the affected party gives prompt written notice and uses reasonable endeavours to mitigate the effect.

I.2 Entire Agreement. This Agreement constitutes the entire agreement between the parties and supersedes all prior representations, negotiations, and agreements.

I.3 Variation. This Agreement may only be varied by a written instrument agreed by both parties.

I.4 Assignment. The Customer must not assign any rights or obligations without the Provider's prior written consent.

I.5 Relationship. The parties are independent contractors. This Agreement does not create a partnership, joint venture, agency, or employment relationship.

I.6 Severability. If any provision is found invalid or unenforceable, it is severed and the remaining provisions continue in full force.

J Dispute Resolution

J.1 The parties agree to use good faith efforts to resolve any dispute through direct negotiation before commencing formal proceedings.

J.2 If a dispute cannot be resolved within 20 business days of written notice, either party may refer the matter to mediation in Victoria administered by the Resolution Institute or another mutually agreed mediator.

J.3 This clause does not prevent either party from seeking urgent injunctive or interlocutory relief.

L Governing Law & Jurisdiction

L.1 This Agreement is governed by the laws of Victoria, Australia.

L.2 Each party irrevocably submits to the exclusive jurisdiction of the courts of Victoria, Australia.

Customer Responsibilities

The Customer is responsible for:

- Maintaining valid and active Gmail, HubSpot, and Airtable accounts throughout the Term;
- Granting and maintaining the Provider's authorised access to Gmail, HubSpot CRM, HubSpot Meetings, and Airtable;

- Ensuring all buyer Personal Information processed via the Service is collected with appropriate consent under the Privacy Act 1988 (Cth);
- Maintaining compliant privacy policies on all Customer-facing platforms.

Electronic Acceptance

By completing the Hermia AI onboarding form, ticking the acceptance checkbox, and paying the Setup Fee, the Customer confirms they have read, understood, and agreed to be bound by this Agreement.

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